

26VECV03091 26VECV03091

County: los-angeles

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Case Number: 26VECV03091 Hearing Date: August 25, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Greatwell USA Inc.,

Plaintiff,

v.

MJT Imports Inc., et al.

Defendants.

Case Number Department

26VECV03091 107

COURT'S [TENTATIVE]
ORDER RE:

Demurrer with Motion to Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Sustain the demurrer with leave to amend; (2) Deny the motion to strike as moot.

I.

BACKGROUND

On

May 27, 2026, Plaintiff Greatwell USA Inc. ("Plaintiff") filed a complaint against Defendants MJT Imports Inc., Indio Products, Inc., Cultural Heritage Products, Inc., and Does 1 to 10, alleging causes of action for: (1) open book account; and (2) account stated.

On

July 23, 2026, Defendants Indio Products, Inc. and Cultural Heritage Products, Inc. ("Defendants") filed a demurrer with motion to strike. On August 10, 2026, Plaintiff filed an opposition. On August 17, 2026, Plaintiff filed an amended opposition. On August 18, 2026, Defendants filed replies.

II.

TIMELINESS

"A person against

whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint." (Code Civ. Proc., § 430.40, subd. (a).) Per Code of Civil Procedure section 435, subdivision (b)(1), a motion to strike should also be filed within 30 days after service of the complaint. (See Code Civ. Proc., § 412.20, subd. (a)(3).)

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before they are set for hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Electronic service extends the deadline

by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Plaintiff served Defendants with the

summons and complaint by substituted service on May 29, 2026. (Proofs of Service filed 05/29/26.) The documents were mailed that same day. (05/29/26)

Proofs of Service p. 3.) Thirty days, plus 10 days for mailing, after May 29, 2026, was July 8, 2026. Defendants filed the demurrer with motion to strike on July 23, 2026.

Defendants' counsel submits a declaration stating that on July 7, 2026, Defendants' counsel "sent an email to Plaintiff's counsel's office confirming that the response deadline had been extended to July 23, 2026, and that Indio and Cultural Heritage would respond by that deadline." (Goldstein Declaration ¶ 6.)

Plaintiff's counsel's employee, Ivan Ramos, submits a declaration stating they did not agree to an extension and had no authority to do so. (Ramos Declaration ¶¶ 4-5.)

In reply, Defendants state their email correspondence with Plaintiff's manager, Ivan Ramos, copied Plaintiff's counsel, Gary Bemis, and "if Plaintiff believed no extension had been granted, Mr. Bemis could and should have corrected the record immediately. Yet he did not." (Reply pp. 3-4.)

Defendants' counsel submits email correspondence with "" and "" where Defendants' counsel stated "[t]hank you for agreeing to stipulate to a 15-day continuance of the deadline to respond to the Complaint. The new response deadline is July 23, 2026" and "[a]s memorialized below, Mr. Ramos agreed to stipulate to a 15-day extension to respond, as my firm was recently retained to handle this matter. Cultural Heritage and Indio understand that the deadline to respond is now July 23 and will do so in accordance with that deadline." (Goldstein Declaration Ex. 2 pdf pp. 33-35.)

Ramos states they received the July 7, 2026, email from Defendants' counsel but that this confirmation the deadline was July 23, 2026, was "fabricated and unequivocally false." (Ramos Declaration ¶ 4.)

If Defendants' counsel misunderstood Ramos and there was no extension, Plaintiff's counsel had an opportunity to correct that misunderstanding. However, there is no evidence in the record that Plaintiff's counsel did so.

“A trial court has broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) Regardless of whether the demurrer with motion to strike is timely, the court will exercise its discretion and consider it.

The demurrer with motion to strike, original opposition, and reply were timely under Code of Civil Procedure section 1005, subdivision (b). The amended opposition was filed only six court days before the hearing. Thus, it is untimely. Defendants in reply appear to have responded to the amended opposition, not the original opposition. (Reply pp. 2-3.) Thus, the court will exercise its discretion and consider the amended opposition.

III.

MEET

AND CONFER

California Code of Civil

Procedure section 430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. §430.41, subd. (a)(3).)

California

Code of Civil Procedure section 435.5, subdivision (a) also requires parties to meet and confer before filing a motion to strike.

Defendants’ counsel

submits a declaration stating they spoke to Ramos about the action. (Goldstein Declaration ¶ 5.) Defendants’ counsel’s declaration details only email correspondence between Defendants’ counsel and Plaintiff’s counsel of record, Bemis. (Goldstein Declaration ¶¶ 4, 7-8.) Code of Civil Procedure section 430.41, subdivision (a) requires meeting and conferring in person, by telephone, or by video conference. Meeting and conferring by email is insufficient.

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).) Section 435.5 contains a similar provision regarding motions to strike. (Code Civ. Proc., § 435.5, subd. (a)(4).) Thus, the court will consider the merits. In the future, the parties must satisfy the meet and confer requirements, or the court will consider continuing the hearing until the parties have properly met and conferred. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355 fn. 3.)

IV.

DEMURRER

a. Legal Standard

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (“E-Fab”) (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1).) A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.)

;

Matters

Outside the Pleading:

Defendants’

demurrer relies on invoices that are submitted with Defendants’ counsel’s declaration. (See, e.g., Demurrer pp. 8-9, 12-14.)

Demurrers

test the pleadings, not the evidence. (*E-Fab, supra*, 153 Cal.App.4th at p. 1315.) The court may also consider matters properly subject to judicial notice. (Id.) No invoices are not attached to the

complaint. Defendants have not requested the court take judicial notice of the invoices. In ruling on the demurrer, the court does not consider the invoices or Defendants' arguments based upon the invoices.

Misjoinder:

Defendants

argue the complaint misjoins Defendants because Plaintiff alleges no transaction, account, or agreement between Plaintiff and Defendants. (Demurrer p. 9.)

Code

of Civil Procedure section 430.10, subdivision (d) provides that a party may demur to a complaint when "[t]here is a defect or misjoinder of parties."

Plaintiff

alleges Defendants became indebted to Plaintiff on an open book account and Defendants became indebted to Plaintiff because an account was stated by and between Plaintiff and Defendants. (Complaint ¶¶ 8, 10.) The court is not persuaded there is a defect or misjoinder of parties here.

Defendants

also challenge the sufficiency of Plaintiff's alter ego allegations. (Demurrer p. 10.) But Defendants have not persuasively argued Plaintiff insufficiently alleges individual liability as to Defendants. Thus, the court need not consider whether Plaintiff sufficiently alleges alter ego theories of liability.

The

demurrer on this ground is overruled.

Uncertainty:

Defendants

argue that the complaint is uncertain because Plaintiff refers to "Defendant", "Defendant(s)", and "each of them" but "does not define those terms, identify which defendant allegedly requested goods, identify which defendant allegedly received goods, identify which defendant allegedly maintained an open book account, or identify which defendant allegedly agreed to an account stated or promised payment." (Demurrer p. 12.)

A party may demur

because the complaint or cross-complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) “[U]ncertain’ includes ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subd. (f).)

“Demurrers

for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.

[Citations.] ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, brackets removed.) “Under our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (Id., brackets removed.)

Plaintiff

refers to Defendants and Defendant MJT Imports Inc. by name. (Complaint ¶¶ 8, 10.) Plaintiff also refers to “Defendant” (Complaint ¶¶ 6, 8) “Defendants” (Complaint ¶ 6) and “Defendant(s)” (Complaint ¶¶ 6, 8, 10, 11). This renders the complaint ambiguous. Defendants cannot reasonably respond to the complaint when it is unclear, based on the various allegations within the complaint, which Defendant, or Defendants, are being referred to within the various paragraphs and elements of the different causes of action.

The

demurrer on this ground is sustained.

Other

Issues Raised:

Defendants

also argue Plaintiff fails to state facts sufficient to state causes of and fails to plead whether any alleged contract was written, oral, or implied by conduct. (Demurrer pp. 12-14.)

The

court sustains the demurrer because the complaint is uncertain. Thus, the remaining issues are moot.

V.

MOTION

TO STRIKE

The

court sustains the demurrer. Thus, the motion to strike is moot.

VI.

LEAVE

TO AMEND

"Where the defect raised

by a motion to strike or by demurrer is reasonably capable of cure, 'leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.'" (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

The

court finds there is a reasonable possibility Plaintiff can cure the defects identified above and grants Plaintiff leave to amend.

VII.

CONCLUSION

For

the foregoing reasons, the court sustains the demurrer and grants Plaintiff leave to amend within thirty (30) days of this order. The motion to strike is denied as moot.

Dated: August 25, 2026 _____ Hon. Eric Harmon

Judge of the Superior

Court